Deepak @ Anil Kumar Sharma vs Govt. Of Nct Of Delhi on 12 October, 2022

Author: Jasmeet Singh

Bench: Jasmeet Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 498/2022
DEEPAK @ ANIL KUMAR SHARMA ..... Petitioner
Through: Mr. Viraj R. Datar, Sr. Adv. with
Mr.Nitish Chaudhary, Mr. Saurav
Joon, Advs.
versus

GOVT. OF NCT OF DELHI .....
Through: Mr.Ajay Vikram Singh, A
Mr.Ajit Sharma and Mr.A
Advs. for complainant
CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH
ORDER

% 12.10.2022

1. The present bail application has been filed under Section 438 Cr.P.C. on behalf of the applicant seeking anticipatory bail in FIR No. 285/2021 registered under Sections 406/420/120B IPC at Police Station Special Cell, Delhi.

2. When the matter came up for hearing on 09.02.2022, the applicant was granted interim protection subject to joining the investigation. The said interim order has continued from time to time.

3. In the FIR, it is stated by the complainant that they were desirous of getting a corporate loan of Rs.25 crores. It is stated that the complainant/Amitec Electronics Ltd. is a 25 years old company in Defence and Intelligence business for Government of India. They approached Mr.Amit Israni for getting a corporate loan of Rs.25 Crores. Mr. Israni introduced them further to Mr. Raj Chabra and the applicant. The applicant further introduced them to Mr. Sumit Singh. It is further stated that the complainant transferred Rs. 5 lakhs to Mr. Raj Kumar on 19.06.2021. Thereafter, they transferred a further sum of Rs.1.5 crores for purchase of stamp-papers for executing necessary document for obtaining the said loan. The said amount was transferred to the account of firm M/s.Vikash Sales, which is a sole proprietorship concern of Mr.Vikash Jain. Mr. Datar, learned senior counsel appearing for the applicant, states that as per the FIR, only role assigned to the applicant is that of introducing the complainant to Mr.Sumit Singh and associates. He states that no amount has been received by him. The same is contradicted by Mr.Ajit Sharma, learned counsel appearing for the

complainant. He states that the amount was withdrawn in cash and was taken by the applicant herein. Mr.Singh, learned APP appearing for the State has also drawn my attention to the conversation between one Mr.Kamil and the applicant showing exchange of money.

4. In the present case, the FIR is primarily on the complainant being cheated of Rs.1.5 crores on the pretext of getting a corporate loan of Rs.25 crores. The entire amount of Rs.1.5 crores has been secured before the learned ACMM court vide orders dated 17.02.2022. On 17.02.2022, bail was granted to Vikash Jain in FIR No.285/2021 and it was recorded as under:-

> "....It is submitted that one Mr. Amit Sharma, Director of M/s. Amitec Electronics lodged a complaint in Barakhamba Road police station on 12.11.2021 regarding cheatings & fraud of amount Rs. 1.50 crores. It is submitted that applicant/accused was arrested by the Special Cell on the night of 02.12.2021. it is submitted that accused has been falsely implicated in the present matter. It is submitted that the account of the applicant is not the beneficiary of the amount alleged in the FIR nor has accused has not committed any cyber crime and no recovery has been made from him. It is submitted that the police has not followed the directions contained in judgment of the Hon ble Supreme court of India in Arnesh Kumar vs. State of Bihar Judgment as no notice under section 41A(1) read with Section 41(1)(B) Cr.P.C. dated 08.11.2020 was sent to the applicant before arresting the applicant. It is submitted that applicant/accused has clean antecedents. There is no apprehension of applicant tampering with evidence. It is submitted that applicant/accused belongs to respectable family and has deep roots in the society. Applicant has a school going daughter. There are no chances of him absconding or misusing the favour of bail. Applicant is also not holding any passport and is a permanent resident of Delhi and there are no chances of his absconding in case he is released on bail.
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> It is submitted that the applicant has made a payment of Rs. 68,30,000/- to the complainant as per order dated 24.12.2021 whereby interim bail was granted to the accused. It is submitted that in order to show his bonafide is depositing four FDRs amounting Rs. 81,70,000/- before the court today. It is submitted that accused may be released on regular bail as he has not misused his liberty in any manner rather equivalent to the alleged cheated amount he has paid around Rs. 69 lacs to the complainant and remaining produced before the court in the FDRs....."

5. Mr.Datar, learned senior counsel, states that the entire balance amount of Rs.81.70 lakhs is lying deposited in the court of learned CMM, New Delhi. In this view of the matter, the application needs to be allowed.

6. I am of the view that the amount of Rs.1.5 crores is already lying secured in the court of learned CMM, New Delhi, out of which, Rs.68.30 lakhs has already been given to the complainant. The applicant has already joined the investigation and shall continue to join the investigation as and when the I.O. directs. The Bail Application, hence, is allowed and it is directed that in case of the arrest of the applicant in FIR No.285/2021 registered under Sections 406/420/120B IPC at Police

Station Special Cell, Delhi, he shall be released on bail subject to the following further terms and conditions:

> i. The applicant shall furnish a personal bond in the sum of Rs. 25,000/- with one surety of the like amount to the satisfaction of the Investigating Officer; ii. The applicant shall provide his mobile number to the Investigating Officer concerned, which shall be kept in working condition at all times;
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> iii. The applicant will furnish his permanent address to the IO and in case he changes his address, he will inform the IO concerned;
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> iv. The applicant shall appear and join the investigation as and when called by the Investigating Officer and shall answer each and every question put to him in writing by a written reply;
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> v. The applicant shall not indulge in any act that is unlawful or that would prejudice the proceedings; and vi. The applicant or his family members/relatives/friends will not contact or try to intimidate the complainant or her family members; and, vii. The applicant shall not leave India and shall surrender his passport.

7. Mr.Sharma, learned counsel for the complainant, further submits that he shall be moving an application for release of the amount deposited in the form of FDRs. He may do so in accordance with law.

8. With aforesaid observations, the application is allowed and disposed of.

JASMEET SINGH, J OCTOBER 12, 2022 s Click here to check corrigendum, if any